

(6) Where an order under this section applicable to an individual certificate is made, notice thereof shall be served on the man affected thereby and may be served by sending it to him by registered post to his last known address.

(7) For the purposes of this section a certificate shall be deemed to have been granted or renewed on occupational grounds which was granted or renewed wholly or partly on any of the grounds specified in paragraph (a) of subsection (1) of section two of the Military Service Act, 1916, or (in the case of voluntarily attested men) on any similar grounds, or which, in either case, was granted or renewed by or under the authority of any Government Department; and if any question arises whether a certificate was granted or renewed on occupational grounds, the question shall be referred to the Director-General, whose decision thereon shall be final.

Short title and
citation.

3. This Act may be cited as the Military Service Act, 1918, and the Military Service Acts, 1916 and 1917, and this Act shall be construed together and may be cited together as the Military Service Acts, 1916 to 1918.

CHAPTER 67.

An Act to restrict temporarily the persons who may engage in business connected with certain non-ferrous metals and metallic ores. [6th February 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Prohibition
against
dealing in
certain
metals and
ores without
a licence.

1.—(1) It shall not be lawful for any company, firm, or individual after the expiration of six months from the passing of this Act, or such longer period as the Board of Trade may generally or in any particular case allow, to carry on the business of winning, extracting, smelting, dressing, refining, or dealing by way of wholesale trade, in metal or metallic ore to which this Act applies, unless licensed to do so by the Board of Trade, such licence to be in the form set out in the Second Schedule to this Act:

Provided that the purchase or sale of metal shall not be deemed to be dealing in such metal where such purchase or sale is incidental only to the trade carried on by the purchaser or seller:

Provided also that no licence shall be required when the winning, extracting, smelting, dressing, refining, or dealing is carried on wholly outside the United Kingdom.

(2) In the case of a company, firm, or individual with respect to which any of the conditions set forth in the First Schedule to this Act apply, or which is controlled by a company,

firm, or individual in respect of which any such conditions apply, no licence shall be granted unless the Board of Trade are of opinion that the grant of a licence is expedient, but save as aforesaid any company, firm, or individual carrying on or proposing to carry on such business as aforesaid shall on making application in the prescribed manner, and on furnishing such information and allowing inspection of such books and documents as may be reasonably required, and on payment of the prescribed fee, which shall not exceed one guinea, be entitled to a licence under this Act.

(3) A licence under this Act shall remain in force unless and until it is suspended or revoked.

(4) The Board of Trade, if satisfied by evidence not before them at the time when the licence was granted that such company, firm, or individual is, or has become, subject to any of the conditions set forth in the First Schedule to this Act, or, in the case of a company, firm, or individual to which a licence has been granted notwithstanding that it is subject to any such conditions as aforesaid, that it is expedient that the licence should be revoked or suspended, may revoke or suspend the licence.

(5) If any question arises between the Board of Trade and any company, firm, or individual—

(a) as to whether or not the business carried on by the company, firm, or individual is such as to require a licence under this Act; or

(b) as to whether or not any of the conditions set forth in the First Schedule of this Act apply in respect of the company, firm, or individual; or

(c) as to whether or not the company, firm, or individual is controlled by a company, firm, or individual in respect of which any such conditions apply; or

(d) as to the requirements of the Board of Trade for the production of books or documents for inspection,

the question shall, subject to rules of court, be referred by the Board of Trade to the High Court for determination, and the decision of a Divisional Court of the King's Bench Division on any such reference shall be final, and no appeal therefrom shall lie to any other Court.

(6) Where at the expiration of the said six months or longer period allowed by the Board of Trade proceedings on any such application are pending in the High Court, the Court shall, on application being made for the purpose, extend the said period of six months or longer period as respects that company, firm, or individual for such period as may be necessary to allow the question to be determined by the Court, and where the application is made with reference to the suspension or revocation of a licence the licence shall not be suspended or revoked until the question has been determined by the Court.

(7) The Board of Trade shall publish in the prescribed manner the name of any company, firm, or individual to whom

a licence has been granted under this Act or whose licence has been suspended or revoked.

(8) References in this section to the High Court shall in relation to Scotland be construed as references to the Court of Session, and the reference to a Divisional Court of the King's Bench Division shall be construed as a reference to a division of the Court of Session.

Power to
require in-
formation and
inspection of
documents.

2. The Board of Trade shall have power at any time to require the applicant for a licence or a licensee, or any person who, being a director, partner, manager, or officer of, or the holder of, or a person interested in, shares or securities of, any company, or firm, which has applied for the grant of a licence, or to which a licence has been granted under this Act, or by which the applicant or licensee is controlled, or being the manager of the business carried on by an individual applicant or licensee, is able to give any information as to the constitution control or management of the company or firm, or the business carried on by the company, firm, or individual, or the beneficial interest of any person in such business, or in any shares or securities of the company or firm, to furnish such information within such time as the Board may direct, and for the purpose of obtaining or verifying such information any person appointed by the Board in that behalf shall be entitled to inspect any books and documents belonging to or under the control of such company, firm, or individual, the inspection of which may reasonably be required for the purpose aforesaid.

Offences.

3.—(1) If any person carries on the business of winning, extracting, smelting, dressing, refining, or dealing in any metal or metallic ore in contravention of this Act without a licence, he shall, on an information being laid by or on behalf of the Board of Trade, be liable on summary conviction to imprisonment with or without hard labour for a term not exceeding three months, or to a fine not exceeding one hundred pounds for each day during which the offence continues, or to both such imprisonment and fine :

Provided that the provision as to informations being laid by or on behalf of the Board of Trade shall not apply to Scotland.

(2) If any person refuses or neglects to furnish any information which under this Act is required to be furnished within the time within which it is to be furnished, or knowingly furnishes any information required to be furnished under this Act which is false in any material particular, or having custody of any book or document which a person is authorised to inspect under this Act, refuses or wilfully neglects to produce the book or document for inspection, or forges or fraudulently alters or uses or permits to be fraudulently used any licence issued under this Act, he shall be liable on summary conviction to imprisonment with or without hard labour for a term not exceeding three months, or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

(3) Where the person guilty of an offence under this Act is a company, every director, manager, secretary, and other officer of the company who is knowingly a party to the default, shall also be guilty of the like offence, and liable to the like punishment.

4.—(1) A company carrying on any business to which section one of this Act applies, which has issued share warrants to bearer, may give notice requiring the holders of the share warrants to surrender their warrants for cancellation and to have their names entered in the register.

Provision as to
warrants to
bearer.

(2) The notice shall be given by advertisement in the London, Edinburgh, or Dublin Gazette, as the case may be, and by any other method by which notices to, or for the information of, holders of share warrants to bearer are required to be given by the regulations of the company or the conditions of issue of the warrants.

(3) Where such a notice has been given no person shall, as holder of a share warrant, be entitled to attend or vote at any meeting of the company, and any dividends or interest which may become payable in respect of any shares represented by share warrants shall be retained by the company until the share warrants have been surrendered for cancellation.

(4) For the purposes of this Act the expression "share warrants to bearer" includes any bearer securities which confer on the holder thereof any voting power with respect to the management of the company.

5. No information as to any person or any business obtained under this Act shall be published except for the purposes of legal proceedings under this Act, and if any person knowingly publishes any information in contravention of this provision he shall be liable on summary conviction to imprisonment with or without hard labour for a term not exceeding three months, or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

Provisions as
to secrecy.

6. The Board of Trade may make rules (subject in respect of fees to the approval of the Treasury), for prescribing anything which, under this Act, is to be prescribed, and generally for carrying this Act into effect, and such rules shall provide for excluding from dealings by way of wholesale trade within the meaning of this Act dealings in quantities below such limits as may be prescribed generally or as respects any particular metal or metallic ore :

Rules.

Provided that all such rules shall be laid before each House of Parliament as soon as may be after they are made, and if an address is presented to His Majesty by either House of Parliament, within the next forty days on which that House has sat next after any such rule is laid before it, praying that the rule may be annulled, His Majesty in Council may, if it seems fit, annul the rule, and it shall thenceforth be void.

Evidence of documents.

7. All documents purporting to be documents made by the Board of Trade under this Act, and to be sealed with the seal of the Board, or to be signed by the secretary or an assistant secretary of the Board, or by any person authorised in that behalf by the President of the Board, shall be received in evidence, and shall be deemed to be such documents without further proof unless the contrary is shown.

Declarations

8.—(1) A company carrying on any business to which section one of this Act applies may give notice requiring a shareholder or debenture holder to make a declaration under the Statutory Declarations Act, 1835, as to the beneficial ownership of the shares or debentures standing in his name, and as to the nationality of such beneficial owner.

(2) The notice shall be given by any method by which notices to, or for the information of, holders of shares or debentures are required to be given by the regulations of the company or the conditions of issue of the debentures.

(3) Where such a notice has been given no person shall as holder of a share be entitled to attend or vote at any meeting of the company, and any dividends or interest which may become payable in respect of any shares or debentures shall be retained by the company until the shareholder or debenture holder shall have made such declaration as aforesaid.

(4) For the purposes of this section the expressions "shares" and "debentures" include stock and debenture stock and "shareholder" and "debenture holder" have corresponding meanings.

Metals or ores to which Act applies.

9. The metals and ores to which this Act applies are zinc, copper, tin, lead, nickel, aluminium, and any other non-ferrous metals and ores to which this Act may be applied by order of the Board of Trade; the expression "metal" shall not include metal which has been subjected to any manufacturing process except such as may be prescribed; and the expression "ore" shall include concentrates, mattes, precipitates and other intermediate products.

Short title and duration.

10.—(1) This Act may be cited as the Non-Ferrous Metal Industry Act, 1918.

(2) This Act shall continue in force only during the continuance of the present war and for a period of five years after the termination thereof.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

CONDITIONS.

1. That any director of the company or any partner of the firm, or the individual, or any manager or other principal officer employed by the company, firm, or individual, is a person who is or has been a subject of a State which is now at war with His Majesty or an enemy controlled corporation.

2. That in the case of a company, any capital of the company is or was at any time after the twelfth day of November nineteen hundred and seventeen held by or on behalf of an enemy, including any stock or shares of the company vested in the custodian by virtue of any order made under the Trading with the Enemy Acts, 1914 to 1916.

3. That the company, firm, or individual is or was at any time after the twelfth day of November nineteen hundred and seventeen party to any agreement, arrangement or understanding, which enables or enabled an enemy to influence the policy or conduct of the business.

4. That the company, firm, or individual is or was at any time after the twelfth day of November nineteen hundred and seventeen interested, directly or indirectly, to the extent of one-fifth or more of the capital profits or voting power in any undertaking whether or not in the United Kingdom, engaged in business of a kind to which this Act applies, in which enemies are also interested, directly or indirectly, to the extent of one-fifth or more of the capital profits or voting power.

5. That the company, firm, or individual, is by any means whatever subject, directly or indirectly, in the conduct of their or his business to enemy influence or association.

6. That, in the case of a company, the company has issued share warrants to bearer and has not given notice under this Act requiring the holders of the share warrants to surrender their warrants for cancellation.

For the purposes of this Schedule—

The expression “enemy” means a subject of a State which is now at war with His Majesty and an enemy controlled corporation.

The expression “enemy controlled corporation” means any corporation—

(a) where the majority of the directors or the persons occupying the position of directors by whatever name called, are subjects of such a State as aforesaid; or

(b) where the majority of the voting power is in the hands of persons who are subjects of such a State as aforesaid, or who exercise their voting powers directly or indirectly on behalf of persons who are subjects of such a State as aforesaid; or

(c) where the control is by any means whatever in the hands of persons who are subjects of such a State as aforesaid ; or

(d) where the executive is an enemy controlled corporation or where the majority of the executive are appointed by an enemy controlled corporation.

The expression "capital" in relation to a company means any shares or securities issued by the company which carry, or would, if the necessary formalities were complied with, carry any voting power with respect to the management of the company, and shall also include debentures and debenture stock and money lent to the company.

Section 1 (1).

SECOND SCHEDULE.

FORM OF LICENCE.

(Name of company, firm, or individual)

of

is hereby licensed under the Non-Ferrous Metal Industry Act, 1918, to carry on the business of winning, extracting, smelting, dressing, refining, and dealing by way of wholesale trade in the metals or metallic ores to which the said Act applies.

By Order of the Board of Trade.
